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ODPC Registration for Education Providers

A sector guide to registration and the section 33 parental-consent standard for nursery, primary and secondary schools, colleges and universities in Kenya.



EDUCATION SECTOR · ODPC REGISTRATION · CHILDREN'S DATA · SECTION 33 CONSENT

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A Sector Guide for Schools, Colleges and Universities in Kenya

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KENYA PRIVACY LAW REVIEW · REGISTRATION GUIDE SERIES

ODPC Registration for Education Providers

A sector guide for nursery, primary and secondary schools, colleges and universities in Kenya.

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AT A GLANCE

- “Provision of education” is a mandatory ODPC registration category **regardless of turnover or staff numbers** — a single nursery school or tuition centre cannot rely on the small-business exemption.
- Section 33 of the Act prohibits processing a child's personal data unless parental or guardian consent is obtained and the processing protects the child's best interests — for a school, this is **close to the default rule**, not an edge case, since nearly every data subject is a minor.
- Profiling a child for direct marketing purposes is **outright prohibited** under the General Regulations, not merely consent-gated — relevant to any school running enrolment or promotional campaigns.
- Two published ODPC determinations against Kenyan schools — one for posting images of minors without consent (KES 4,550,000), one for publishing a minor's examination results after a parent's objection (KES 637,500) — confirm this is an **active enforcement pattern**, not a theoretical risk.
- Once a parent has exercised the statutory right to object to processing, a promise to stop is **not enough on its own** — the ODPC has treated a school's subsequent, repeated disclosure as an aggravating breach independent of the original consent failure.

01 Introduction

Kenya's education sector runs from single-room nurseries and tuition centres to large secondary schools, colleges and universities, nearly all of which now hold digital records of their learners alongside the traditional paper file. Academic records, health and welfare information, disciplinary records, and, increasingly, biometric attendance data are processed about students who are, in the overwhelming majority of cases, children. The Data Protection Act, 2019 (“the Act”) requires every education provider to register with the ODPC as a data controller, and separately requires anyone processing that data on the school's behalf — a school management system vendor, for instance — to register as a processor. This Guide sets out that obligation, and, because the sector's defining compliance question is not registration mechanics but the treatment of children's data, gives that question its own dedicated section.

02 The Legal and Regulatory Framework

The registration obligation arises from section 18 of the Act, given operational effect by the Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 (Legal Notice No. 207 of 2021) (“the Registration Regulations”), which took effect on 14 July 2022. Article 53 of the Constitution of Kenya, 2010 requires that a child's best interests be of paramount importance in every matter concerning the child, a standard the Act imports directly into section 33 for data processing purposes. The Children Act, 2022 governs child protection more broadly and informs how “best interests” is applied in a school setting. The ODPC's own Guidance Note for Processing Children's Data, issued in 2025, consolidates the Act's requirements specifically for organisations — schools prominent among them — that process data about minors.

03 Why Registration Is Mandatory for This Sector

The Registration Regulations exempt data controllers and processors with an annual turnover below KES 5,000,000 and fewer than ten employees from mandatory registration — but only where the entity does not fall within a list of sectors the Regulations treat as inherently higher-risk regardless of size. “Provision of education” is one of those sectors.

PRACTICAL INSIGHT

A single-classroom nursery school with three staff and a tuition centre operating out of a rented room must both register, exactly as a large secondary school must. Size and informality are not a defence — and, given that nearly every learner on the roll is a minor, this is one of the sectors where the underlying compliance obligations are, if anything, more demanding than the registration step itself.

04 Processing Children's Data: The Core Compliance Question

Section 33 of the Act prohibits processing a child's personal data unless consent is given by the child's parent or guardian and the processing protects and advances the rights and best interests of the child. A data controller or processor must incorporate appropriate mechanisms to verify age and to verify that consent genuinely comes from a parent or guardian, taking into account the technology reasonably available to it. The General Regulations add two further, specific rules that matter for a school: profiling a child for purposes connected to direct marketing is prohibited outright, not merely subject to consent; and where someone purports to exercise a child's rights on the child's behalf, the school must appropriately verify that relationship and inform the parent or guardian of the risks and safeguards involved in the processing. A narrow exception exists under section 33(4) of the Act for a person exclusively providing counselling or child-protection services to a child, who may not be required to obtain parental consent for that specific processing — relevant to a school counsellor's records, but not to the school's general administrative or promotional use of student data.

05 Controller, Processor — or Both?

A school, college or university is ordinarily a data controller for its own student, parent and staff records. Many schools are, in addition, connected to a school management system or learning management platform that processes data on the school's instructions, making that vendor a processor for the school's data while the vendor remains a controller for its own separate business records. Disclosures to the Ministry of Education's National Education Management Information System, to the Kenya National Examinations Council, or to an international examining body for a school offering a foreign curriculum, are ordinarily disclosures to another independent controller — each of those

bodies determines its own purposes — and should be declared in the registration application as a recipient rather than as a basis for dual registration.

06 Registration Tiers and Fees

Private-sector data controllers and processors are classified into three tiers based on annual turnover and employee numbers, with a distinct fee for public and charitable or faith-based institutions — relevant to the many Kenyan schools sponsored by a religious organisation.

Tier	Size Criteria	Registration Fee (once-off)
Micro & Small	1–50 employees; turnover up to KES 5,000,000	KES 4,000
Medium	51–99 employees; turnover KES 5,000,001–50,000,000	KES 16,000
Large	More than 99 employees; turnover above KES 50,000,000	KES 40,000
Public / Charitable or Faith-Based Entities	Regardless of turnover or staff numbers	KES 4,000

A certificate of registration is valid for 24 months from the date of issue and must be renewed at least 30 days before expiry; renewal fees are lower than initial registration fees (currently KES 2,000 for Micro & Small, KES 9,000 for Medium, and KES 25,000 for Large).

07 Information the ODPC Will Expect to See

Beyond basic establishment details — a certificate of registration and a KRA PIN — a complete application requires a clear and internally consistent description of the school's data processing activities:

- **Categories of data subjects processed** — current students, parents and guardians, staff, alumni, and prospective applicants.
- **Categories of personal data processed** — academic and disciplinary records, health and welfare information (particularly for boarding schools), biometric attendance data

where used, and financial or fee-payment data.

- **The specific purposes** for which data is processed — academic administration, statutory reporting to the Ministry of Education and examining bodies, safety and welfare, and marketing or enrolment promotion should be distinguished rather than bundled into a single generic purpose.
- **Recipients** to whom data is disclosed — the National Education Management Information System, the Kenya National Examinations Council or an international examining body, school management system vendors, and, where used for promotional purposes, media outlets or publishers.
- **Any transfer of data outside Kenya** — relevant to schools offering an international curriculum that report to a foreign examining body, or that use an offshore-hosted learning management system.
- **The safeguards in place** — access controls on student records, specific safeguards for health and welfare information, and a documented consent mechanism for any publication of student names, images or results.

08 Where Education Providers Get It Wrong

The following gaps are the ones we most commonly see, and, on the evidence of the determinations discussed in section 11, the ones most likely to produce a complaint rather than merely a registration correction.

COMMON MISTAKE — PUBLISHING NAMES, PHOTOS OR RESULTS WITHOUT DOCUMENTED PARENTAL CONSENT

Featuring student names, photographs or examination results in a newsletter, yearbook, prospectus, website or newspaper feature without a documented, specific parental consent covering that particular use. A general enrolment-form clause is unlikely to meet the Act's threshold where the actual use is promotional rather than purely academic.

COMMON MISTAKE — TREATING A PARENT'S OBJECTION AS A ONE-TIME CONVERSATION

Acknowledging a parent's objection to a specific disclosure, assuring them it will not recur, and then failing to put in place the internal controls needed to make that true. As the case discussed in section 11 shows, a repeat disclosure after an acknowledged objection is treated as an aggravating breach in its own right.

COMMON MISTAKE — MARKETING AND ENROLMENT CAMPAIGNS THAT PROFILE STUDENTS

Using student performance or behavioural data to target marketing toward prospective families — a practice the General Regulations prohibit outright for children, independent of whatever consent language appears in an enrolment pack.

COMMON MISTAKE — INCOMPLETE DATA INVENTORY

Listing “students” as a single category without separately identifying parents and guardians, staff, and alumni, each of whom stands in a different relationship to the school and is owed a different privacy notice.

COMMON MISTAKE — BIOMETRIC ATTENDANCE WITHOUT NOTICE OR ASSESSMENT

Deploying fingerprint attendance systems for students or staff without the explicit privacy notice the ODPC's guidance on biometric data requires, and without considering whether the scale of processing warrants a Data Protection Impact Assessment.

09 Step by Step: Registration and Responding to a Correction Notice

- Prepare the data inventory and supporting documents set out in section 7 above before opening the online application.
- Submit the application through the ODPC's online portal and pay the applicable tier fee.
- Where the Data Commissioner is satisfied, a certificate of registration is issued within 14 days of a complete submission.
- Where the Data Commissioner is not satisfied, a written refusal notice is issued within 21 days, setting out the specific reasons for rejection.

- A rejected applicant may cure the identified deficiencies and make a fresh application — this attracts a new registration fee.
- Once issued, the certificate is valid for 24 months and must be renewed at least 30 days before expiry.
- Where a parent raises an objection to a specific use of their child's data, treat it as a standing instruction requiring an internal control, not a one-off request to be resolved and forgotten.

10 Beyond Registration: Related Compliance Obligations

Registration is a threshold obligation, not a complete compliance programme. Education providers should, in parallel, address the following:

- **Appointment of a Data Protection Officer** — a threshold most schools processing children's data as a core function of their operations are likely to meet.
- **A Data Protection Impact Assessment** before deploying biometric attendance systems or any large-scale student profiling or analytics tool.
- **A privacy notice** addressed specifically to parents and guardians, given that consent for a minor's data flows through them, covering academic records, health and welfare data, and any publication or marketing use.
- **A specific, documented consent process** — separate from the general enrolment form — for any use of a student's name, photograph or results in a newsletter, website, yearbook or media feature.
- **Written data processing agreements** with school management system and learning management platform vendors.
- **A breach-response procedure** calibrated to the Act's notification timelines, with particular attention to the sensitivity of a breach involving children's data.

11 Case in Focus

JULIAN ROWA (SUING ON BEHALF OF A MINOR, AJR) V THE NAIROBI ACADEMY — ODPC COMPLAINT NO. 1597 OF 2025, DETERMINATION OF 2026

Facts. A parent complained that the school disclosed his child's name and examination results to a newspaper, which published them in an advertising feature. A similar disclosure had occurred in 2023; after the parent objected, the school assured him it would not recur. It recurred on 21 August 2025, when the child's name and results appeared in the Daily Nation's Advertising Feature section as part of a general update on the school's academic performance.

The school's position. It stated the results had been shared with the publisher as part of a general update on the school's academic performance, that no express parental consent had been obtained, that the disclosure was not intended to market or commercially exploit the child's data, and that internal lapses were to blame — it had since implemented reforms.

The Data Commissioner's reasoning. A child's name, combined with contextual details such as their school and examination results, renders the child identifiable and therefore constitutes personal data. The publication appeared in an advertising feature rather than an editorial section, showing the disclosure was promotional rather than purely informational — which meant it required express parental consent under the Act's commercial-purposes provisions, in addition to the consent section 33 already requires for any processing of a child's data. Because the parent had already exercised his statutory right to object, and the school had acknowledged that objection, the school was under a continuing obligation to prevent any further disclosure; its failure to do so was treated as a breach independent of, and additional to, the original lack of consent.

Outcome. The ODPC ordered the school to pay the parent KES 637,500 in compensation for material and non-material damage, including distress.

Relevance to registration. This is the second published ODPC determination against a Kenyan school on closely related facts — in September 2023, a different school was fined KES 4,550,000, the highest of three penalty notices issued that month, for posting images of minors without parental consent. Together, the two cases confirm that publication of student information — whether images or results, whether on a website or in a newspaper — is the fact pattern the ODPC has, on the evidence available, treated most seriously in this sector.

12 Practical Compliance Checklist

BEFORE YOU APPLY

- ☒ Confirmed the institution's correct tier by cross-checking staff numbers and turnover against filed accounts and payroll records.
- ☒ Confirmed controller/processor scope, including any school management system or learning management platform vendor.
- ☒ Prepared a complete data inventory: students, parents/guardians, staff and alumni, each stated separately.
- ☒ Documented specific safeguards for health, welfare and disciplinary records.
- ☒ Identified all recipients, including NEMIS, examining bodies, and any media or publisher used for promotional purposes.
- ☒ Identified any cross-border element — a foreign curriculum's examining body, or an offshore-hosted learning platform.

AFTER YOU APPLY

- ☒ Diarised the 14-day review window and the 21-day refusal-notice window.
- ☒ If a correction or refusal notice is received, addressed every point raised before resubmitting.
- ☒ Diarised the 24-month certificate expiry and the 30-day renewal deadline.

ONGOING

- ☒ Put in place a specific, documented parental consent process for any publication of a student's name, photo or results.
- ☒ Logged and tracked any parental objection as a standing instruction, with an internal control to prevent recurrence.
- ☒ Reviewed marketing and enrolment campaigns for any element of student profiling, and removed it.
- ☒ Issued a privacy notice addressed to parents and guardians covering academic, health, welfare and biometric data.
- ☒ Executed data processing agreements with school management system and learning platform vendors.

13 Conclusion

For a Kenyan education provider, registration itself is the easy part — unconditional, modestly priced, and procedurally straightforward. The harder and more consequential question is how the school treats the fact that almost everyone in its data inventory is a child, which the Act does not treat as a footnote but as the organising principle of section 33. The two determinations discussed in this Guide did not arise from obscure or technical failures; they arose from ordinary school communications — a newsletter feature, a newspaper update — handled without the specific, documented parental consent the Act requires, and, in the more recent case, without honouring a parent's objection once it had already been raised and acknowledged.

KEY TAKEAWAYS

- “Provision of education” is a mandatory ODPC registration category **regardless of turnover or staff numbers** — a single nursery school or tuition centre cannot rely on the small-business exemption.
- Section 33 of the Act prohibits processing a child's personal data unless parental or guardian consent is obtained and the processing protects the child's best interests — for a school, this is **close to the default rule**, not an edge case, since nearly every data subject is a minor.
- Profiling a child for direct marketing purposes is **outright prohibited** under the General Regulations, not merely consent-gated — relevant to any school running enrolment or promotional campaigns.
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AUTHOR'S PERSPECTIVE

The Nairobi Academy determination is worth reading in full with any school client, not just summarising, because the sequence matters: the school did the right thing once — it received an objection and promised to comply — and the finding against it turned on failing to operationalise that promise, not on the original disclosure alone. Schools tend to focus compliance effort on the consent form at enrolment; the more durable lesson from this case is that a single parental objection needs an internal control behind it, not just an apology in the moment.

How We Can Help. We advise schools, colleges and universities on registration strategy, section 33 parental-consent processes, and responding to a parent's objection in a way that actually prevents recurrence. If any part of this Guide describes your institution, we would be glad to talk it through with you.

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